

Larkspur Benefit Services: Cyber Incident Response

PII/PHI extraction · HIPAA and state breach notification

PLATFORM

Relativity

DOCUMENTS

150 · rosters, claims, medical, HR, email

PACE TARGET

15 documents per hour

Training matter. The parties, events and documents are fictional and exist for AA Team review practice.

1 Matter overview

Larkspur Benefit Services, a health-benefits administrator, suffered a ransomware attack, and the attacker took a copy of a file share. Outside counsel has engaged the review team to mine the stolen files: to find every affected person and every data element exposed, so Larkspur can notify them under HIPAA and state breach-notification laws.

Larkspur handles health-plan data for the plans it serves, which makes it a HIPAA business associate rather than a covered entity. It also holds ordinary employer HR data. You will meet both PII and PHI.

This is extraction, not coding. You record who each document exposes and what was exposed. You do not decide responsiveness or privilege.

2 Parties and custodians

CUSTODIAN	WHAT IT HOLDS
Benefits Operations	Enrollment and eligibility files, member correspondence
Claims	Claim forms and care-management records
HR	W-2s, direct-deposit forms, I-9s
IT	Tickets and account administration
Finance	Billing and premium payments

3 The extraction template

One row per affected person in the document: typed identity values, then a tick box for each data element exposed.

IDENTITY FIELD	HOW TO ENTER IT
First name, Last name	As the document gives them. First and last only.
Date of birth	Month first with a four-digit year, for example 03/14/1986.
Street, City	As the document gives them.
State	The two-letter code.
ZIP	Five digits.

PII (STATE BREACH-LAW TRIGGERS)	PHI (HIPAA)
SSN · Driver's license / state ID · Passport · Financial account · Payment card · Login credentials · Biometric	Medical record no. · Health plan / member ID · Medical info (diagnosis, treatment, medication)

Every document ends with either at least one row or the "No PII/PHI in this document" box ticked, never both. About a quarter of the set has no PII at all.

4 How to extract

1. One row per person per document. Someone who appears twice in one document is one row, with their elements merged.
2. Record only individuals the document names. An SSN with no name attached is not recorded.
3. Type the name as the document gives it, first and last only.
4. Leave a field blank when the document does not show it. Never infer an address or a date of birth.
5. Business contact details are not PII, and providers are not affected individuals.
6. A masked or last-4-only SSN does not count as an SSN.
7. Dependents, including minors, are affected individuals.
8. Record a person only when at least one data element is exposed for them. A name with only an address, or with only a masked SSN, is not an affected individual and gets no row.

5 Data elements: what counts

ELEMENT	COUNTS	DOES NOT COUNT
SSN	A full Social Security number	A masked or last-4-only number (XXX-XX-1234)
Driver's license / state ID	A license or state ID number	The words "driver's license" with no number
Passport	A passport number	A note that a passport was seen, with no number
Financial account	A bank account number, with or without a routing number	A bank's name alone
Payment card	A full card number	The last four digits alone
Login credentials	A username or email together with its password	A username alone
Biometric	Fingerprint, face or voice data, or an enrolled template for it	A photo on a staff badge
Medical record no.	A medical record number (MRN)	A claim or invoice number
Health plan / member ID	A member or subscriber ID	A plan's name alone
Medical info	A diagnosis, condition, treatment, procedure or medication tied to the person	A provider's specialty or a clinic's name

6 Judgment traps

The provider is not the patient

Claims and progress notes name a doctor with a practice address. That is business contact information. The patient is the affected individual.

Masked numbers don't count

Direct-deposit forms show only the last four digits of an SSN. Record the person for their bank account, and leave the SSN box empty.

Look below the page break

Long rosters continue onto a second page. The last rows are as affected as the first.

Dependents are affected too

Children listed on an enrollment census are affected individuals, with their own rows.

Names without data

A newsletter mailing list holds names and addresses only. With no data element exposed, no one on it gets a row.

7 Pace and grading

The target for this matter is 15 documents per hour. Extraction is slower than coding: rosters and claim files carry many people each. Pace is measured per working session; a gap of more than 30 minutes starts a new one. Your first submission of each document is the graded one.

DEFECT	WHAT IT COSTS THE CLIENT	WEIGHT
Missed individual	Someone who should be notified is not	5
Missed data element	The letter understates the exposure; it can change which laws apply	3
Extra individual	Over-notification: cost, and needless alarm	2
Extra data element	Overstates the exposure	1
Identity field error	The letter is misaddressed or cannot be matched	1

8 Escalation and the QC standard

STEP	WHO	WHEN
1	Glory or Junior	Your first go-to for every question.
2	Zabron or Simon	If Glory and Junior are unavailable or need backup.
3	Aaron	If it is still unclear after steps 1 and 2.
4	PM / RM	If Aaron has no clear answer, or the question is client-level.

- Never guess silently on a gray area. While you wait for an answer, protect the document: treat it as privileged and do not release it.
- Ask a good question: the document ID; short context (who is writing to whom, about what); your lean and why; and what makes it difficult.

QC TRACK STANDARD

Accuracy	Measured as defects per 1,000 documents. The target is zero. One defect per thousand still scores 95.
Pace	15 documents per hour for this extraction matter (60 applies to the coding matters).
Responsiveness	Reply to supervisor messages within 2 minutes while on shift.
The rule that outranks the others	Never trade privilege accuracy for speed.